

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2020 OCT 16 PM 3:35

CHANCERY CLERK

PHYLLIS MARIE CROWDER

PETITIONER

VERSES

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

RESPONDANT

RE: CITATION OF MODIFICATION AND OTHER RELIEF

RESPONDANTS COUNTERCLAIM TO INCLUDE MODIFICATION OF CUSTODY AND
CHILD SUPPORT ORDER AND REASSIGNMENT OF CUSTODY, PRAYER FOR
WITHDRAWAL OF CURRENT WITHHOLDING ORDER AND ASSESSMENT OF OTHER
PARTY FOR CHILD SUPPORT, PRAYER FOR PERMANANT INJUNCTIVE RELIEF AND
APPLICATION OF SANCTIONS, AND THE RENDERING OF CRIMINAL CHARGES OF
PERJURY AS A FUTURE DETERRANT BY THIS HONORABLE COURT AS WARRANTED

COMES NOW, your RESPONDANT, Matthew Oliver Reardon, and files his Answer to
Petition for Citation of Modification and Other Relief and files his response and Counterclaim for
said matter as allowable under Rule 81 (d)(4), MRCP and for just cause would state unto the Court
the following, to-wit:

- 1) **The RESPONDANT ADMITS** the claims in paragraph 1 of PETITIONER'S Petition
for CITATION OF MODIFICATION AND OTHER RELIEF
- 2) **The RESPONDANT ADMITS** the claims in paragraph 2 of PETITIONER'S Petition
for CITATION OF MODIFICATION AND OTHER RELIEF
- 3) **The RESPONDANT ADMITS** the claims in paragraph 3 of PETITIONER'S Petition
for CITATION OF MODIFICATION AND OTHER RELIEF

SCANNED

4) **The RESPONDANT VEHEMENTLY DENIES** the claims in paragraph 4 in PETITIONER'S Petition for CITATION OF MODIFICATION AND OTHER RELIEF and respondent respectfully **moves this court to strike this from the record as this is a completely vile, untrue, and libelous assertion intentionally made by the petitioner and her attorney Mona Pittman that they are and have been fully aware of being completely false and is an intentional attempted ploy to defame the respondent and intentionally interfere with legal matters that involved and still call for the testimony of the respondents. The respondent in this matter has stated for the last three years, and can show as fact, where the petitioner and her attorney in this cause have attempted to manipulate legal matters through using the minor child as a manipulation tool of the court in order to manipulate an outcome favorable to the petitioner and at the benefit of her legal counsel, which the respondent will refrain from further elaborating on other than the following, due to the complexity and involvement of other pending legal matters until the need to raise them at the right time and in the proper venue. Department of Childs Services has stated on multiple occasions, in fact every occasion since petitioner made such frivolous and untrue claims about the respondent and his spouse, that the petitioner is in fact LYING, that they would never have advised such a thing, that the claim/claims brought by the petitioner were closed as unfounded and untrue, and that respondent should indeed file against petitioner, however respondent was financially burdened from the expenses of a new child born and hospitalized for nearly the first three months of her life along with the respondent's child support obligations which were established over four years ago being grossly out of proportion with respondents current income. The petitioner NOR her attorney have had any such contact with the respondent and as such are completely out of**

line and the respondent even takes offense to the blasphemous assertion made that respondent is under the influence of prescription or non-prescription drugs and/or alcohol. The petitioner and her attorney can't produce one piece of evidence to make said claim relevant or even remotely accurate/true. Such assertion by the petitioner is dangerous to freedoms and civil liberties afforded to all citizens as they are grabbing at straws and making blind assertions in an outrageous attempt to continue the ongoing narrative of attempting to make the respondent prove his innocence to a baseless assertion without merit. In essence adjudging the respondent guilty until proven innocent, contrary to the way the legal system properly was designed in the burden of proof being on the accuser and not the accused. Finally, the minor child even told Child Protective Services when she was interviewed that absolutely no abuse whatsoever occurred, and the fact that the petitioner and her attorney continue to make such an outrageous assertion as an excuse in a public court filing to the intentional interfering with parental visitation for NINE months now should outrage this court and be condemned with relief granted to respondent and sanctions as warranted issued as a deterrence for future misconduct, as the petitioner clearly didn't learn her lesson after being criminally charged by Olive Branch Police Department for falsely accusing the respondent of rape in November of 2018. This bizarre behavior demonstrated is not only callous to society, but seriously invokes fear into the respondent as to what is the petitioner's next false allegation and plan, along with posing the serious question to the respondent and should to this court as well of "Is this the next Casey Anthony?"

- 5) **The Respondent VEHEMENTLY DENIES the claims in paragraph 5** and would state unto this court the following facts:

A) That respondent has had absolutely NO in-person contact with the petitioner

since on or around January 20, 2020 when respondent dropped his child off with petitioner for normal visitation drop off. Therefore the stated claim of respondent's behavior becoming erratic in-person is not only MOOT and another blind assertion made by the petitioner and her attorney, but another fine example of the petitioner perjuring herself on a signed and sworn affidavit to this court, and another obnoxious attempt by the petitioner and her legal council to attempt to file false, frivolous, and defaming to go on file in a public court filing in order to further victimize the respondent and even his spouse whom has been unfairly attacked and continuously damaged at the malice hands of the petitioner and her attorney despite his continued demonstration of innocence while the truly erratic one, the petitioner, has continually gotten a slap on the wrist or no punitive action applied whatsoever which would further serve as a deterrent. Respondent would state for the record that his minor child has truly been the one to suffer by being refused access to her father due to lies and false allegations by petitioner to control and manipulate custody and visitation.

B) That respondent is in no way connected to Petitioner on social media, nor has he

made any attempts to connect with petitioner on social media. Same applies with her attorney. Therefore, how could respondent's behavior on social media be erratic to petitioner, other than the respondent steadily bringing evidence forward, attempting to compel evidence which respondent has alleged and produced evidence of being fraudulently concealed, with the ultimate goal of vindicating himself and seeking justice from a false allegation in 2017? The aforementioned should be an expectation of a truly innocent party and respondent would allege that the only reason petitioner and her attorney assert that the way respondent produces evidence of wrongdoing in

proving his innocence is “erratic” is because more and more evidence is showing the petitioner’s involvement in the criminal framing of the respondent and his coerced plea under fear and duress. This along with other stated facts aforementioned in this response as well as additional evidence respondent retains would not only show petitioner and her legal council’s direct involvement, but further substantiates violating 42 USC 1985 (2) Conspiracy to Interfere with Civil Rights, a federal violation, further defined in the subtitle of paragraph 2 as “Obstructing Justice, Intimidating Party, Witness, or Juror”. Being that petitioner has once again frivolously and falsely filed against respondent and did so knowingly with unclean hands in violation of the Clean Hands Doctrine from knowingly violating the visitation order established by this court and doing so while invoking Child Protection Services through her continued lies and false allegations, respondent prays that this court issue permanent injunctive relief against the petitioner to cover respondent, his spouse, and minor children and to further provide relief to respondent as warranted and would better serve as a deterrent to petitioner and her attorney from future gross misconduct and what respondent feels is best characterized by “Legal Abuse Syndrome”.

6) **The Petitioner should be DENIED any award of attorney fees for her attorney**

because the respondent is, indeed, not in willful or deliberate violation to his direct knowledge of any prior judgement or decree pursuant to *Dunaway v. Busbin*, 498 So.2d 1218, 1222 (Miss. 1986) '(emphasis added); *Newell vs Hinton*, So.2d 1037, 1044 and is in direct violation of the Clean Hands Doctrine along with Perjury for her knowingly false allegations made under signed and sworn affidavit. As stated previously, the petitioner brings no merit or valid facts to her claim. Furthermore, she has knowingly and

contumaciously violated the agreements established by this court in bringing this action and in doing so is in violation of the Clean Hands Doctrine, therefore petitioner is barred from seeking any relief associated with this cause. Respondent would pray upon this court to grant monetary relief for the time expended in preparing and bringing this response and counterclaim along with the petition he filed with this court on 10/8/2020.

RESPONDENT WOULD FURTHER STATE THE FOLLOWING BEFORE THIS COURT

Petitioner and her attorney brought this action in what respondent alleges and feels that he has demonstrated as a rudimentary attempt to further damage the character of the respondent and his spouse after all other failed and foiled false allegations asserted at the malice hands of the petitioner and her attorney including the more recent one in which the petitioner falsely accused respondent of raping her in November of 2018. Olive Branch Police Department not only dismissed the false report but prosecuted the petitioner for making a false report of rape after evidence showed not only was it false, but a conspired upon plot attempting to permanently remove the respondent from his daughter's life. Discovered evidence in such case would further go to show that on that evening after respondent was sleeping that the petitioner proceeded to go around respondent's house taking pictures in what would easily appear to be her attempting to stage conditions favorable to the petitioner to then take the said evidence in what respondent can only imagine would be another attempt to assert false allegations about the respondent in order to further diminish or remove rights to the minor child as he is entitled that are further asserted and ordered by this court. The respondent has continued to act with malice conduct towards both the petitioner and his spouse since the time they first met in April of 2017, amounting to continuous false and frivolous accusations from that time that the respondent would show not only would clearly and absolutely demonstrate a pattern of continued misconduct, but one that both the state and the county have allowed her to continuously get away with at the

intentional infliction of damage to include mental anguish, emotional trauma, the libel and intentional defaming of the respondent and his spouse, along with the loss of certain personal freedoms and liberties that are guaranteed to all citizens by both the State of Mississippi and United States Constitutions in order to defend against the petitioners false and frivolous assertions. This combined with the continued pattern demonstrated by petitioner of her through the assistance of her legal counsel to knowingly prevent access to the minor child through repetitive lies such as those asserted in this petition have not only created a financial hardship on the respondent but have led to a loss of enjoyment and happiness in life due to their crude attempts to manipulate an outcome through downright lies asserted to authorities, child protective services, and to this court which have gone unchecked and unpunished. Further evidence (completely false police reports made by the petitioner) which respondent was never made aware of at the time and has since gathered through the Public Records Act would further demonstrate to this court that it has been the intention of the petitioner and her attorney to continually manipulate a favored outcome in their attempts to mislead this court through false allegations and the initiation of legal proceedings under knowingly false pretenses which for the most part began from the time the respondent and his spouse started dating in April of 2017, and were further enhanced when respondent and his spouse married in November of 2017. This time, the petitioner shockingly tried to pass off her lies and false accusations via a public court filing and freely gave such written false testimony and affirmed by sworn affidavit under penalty of perjury for providing false statements. The petitioner was well aware that her statements made were not true and by now has certainly initiated enough legal proceedings to completely understand the penalties associated with perjuring oneself in a legal proceeding and even worse in a sworn written affidavit filed with the court in what will beyond all reasonable doubt amount to a continuation of the same type of extremely harmful behavior that she was criminally charged with by Olive Branch Police Department. Yet despite everything, the petitioner is continuing to demonstrate the same

savage behaviors without any care for human decency, ethics, or moral values shown through her completely vile attempt to further damage the character of the respondent and father of her child, a United States Marine Corps Veteran who proudly served his country from 2007-2011, and his spouse despite all of the other failed and foiled false allegations asserted and brought by the malice hands of the petitioner and her attorney in which every last one has been proven untrue, unfounded, and without merit. This would of course include the more recent one in which the petitioner falsely accused the respondent of raping her in November of 2018. Olive Branch Police Department not only dismissed the false report but prosecuted the petitioner for making a false report of rape after evidence showed not only was it false, but a conspired upon plot attempting to permanently remove the respondent from his daughter's life. Discovered evidence in such case would further go to show that on that evening after respondent was sleeping that the petitioner proceeded to go around respondent's house taking pictures in what would easily appear to be her attempting to stage conditions favorable to the petitioner to then take the said evidence in what respondent can only imagine would be another attempt to assert false allegations about the respondent in order to further diminish or remove rights to the minor child as he is entitled, which are further ordered and backed by the orders of this court. The Respondent asserts and will demonstrate that the petitioner has developed a pattern and history of continuously making false and frivolous accusations about the respondent and his spouse from a time shortly after the respondent and his spouse met, and that the allegations of the petitioner which respondent would further present before this court not only demonstrate a clear pattern of continued grave misconduct, but dangerous conduct which should never be allowed and condoned in society. Nonetheless, State and County officials have allowed her to continuously get away with at the intentional infliction of damage to the respondent including but not limited to: mental anguish, emotional trauma, the libel and intentional defaming of the respondent and his spouse, and the loss of certain personal freedoms and liberties that are guaranteed to all citizens by both the State of

Mississippi and United States Constitutions in order for the respondent to defend against the petitioners false and frivolous assertions. The condoning of such actions by petitioner not receiving any type of fitting punishment that would serve as a deterrent to the petitioner from future flagrant abuses of the legal system and in turn the violation of the respondent's rights has at the very least been negligent and would rise to the level that the respondent would assert is better characterized by the term obnoxious, and is quickly edging towards intentional and malice acts by State and County officials for allowing such an atrocity to happen and not thwarting such monstrous behavior. All of this combined with the continued pattern of dangerous misconduct demonstrated by the petitioner and through the assistance of her attorney to knowingly prevent the respondent access to his minor child through their repetitive lies asserted in the past leading up to and including this petition have not only created a financial hardship on the respondent but have led to a loss of enjoyment and happiness in life due to their crude attempts to manipulate an outcome through downright lies asserted to authorities, child protective services, and to this court which have gone unchecked and unpunished. Further evidence (completely false police reports made by the petitioner) which respondent was never made aware of at the time and has since gathered through the Public Records Act would further demonstrate to this court that it has been the intention of the petitioner and her attorney to continually manipulate a favored outcome in their attempts to mislead this court through false allegations and the initiation of legal proceedings under knowingly false pretenses which for the most part began from the time the respondent and his spouse started dating in April of 2017, and were further enhanced when respondent and his spouse married in November of 2017. It is for these reasons stated that the respondent prays upon this court to apply the laws equivocally as stated and required under federal law, would strongly condemn the acts and furtherance of unlawful and immoral acts of the petitioner and her attorney, send a clear message to deter future acts, and allow respondent to repair the paternal relationship which was intentionally severed by the malice hands

and lies of the petitioner and her attorney's hands to intentionally prevent respondent's access to his minor child.

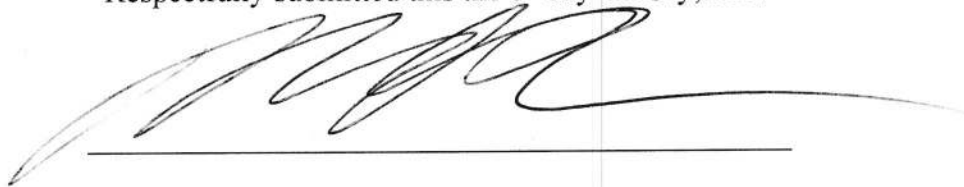
WHEREFORE PREMISES CONSIDERED, Movant prays that his answer to Petition for Modification and Other Relief and Counterclaim for Citation of Contempt, Modification of Custody, and Other Relief be received and filed, and that upon final hearing the Movant be awarded the following, to-wit:

- A) That the PLAINTIFF be found in willful and contumacious contempt by this Court;
- B) That the PLAINTIFF be ordered to immediately purge herself of contempt
- C) That the Court modify the custody Order entered in this cause, ordering the PLAINTIFF to relinquish custody of the minor child to the RESPONDENT, ordering child support obligations, whatever they may be determined to be, be paid by the PLAINTIFF, and ordering that the PLAINTIFF be responsible for half of all costs associated with any extracurricular activities the minor child may participate in;
- D) That the previous Order of the Court be modified to restrict the Plaintiff's interference in the DEFENDANT's parenting of the minor child and to provide that should the PLAINTIFF continue to interfere with the DEFENDANT's rights and continue to be physically and mentally abusive to such minor child, the PLAINTIFF shall forfeit any unrestricted or unsupervised visitations which the Court might find fit to grant the PLAINTIFF upon modification of the custody Order.
- E) That the PLAINTIFF be denied any award of attorney's fees for her attorney of record because the RESPONDANT/DEFENDANT is, indeed, not in willful or deliberate violation of the prior judgment or decree due to unclean hands by willful or deliberate violation of the prior judgement or decree due to unclean hands herself.

- F) That the RESPONDANT/DEFENDANT be awarded appropriate monetary fees for the time expended in preparing, filing, and serving his response and the original petition he commenced on 10/8/2020 due to the intentional acts and contumacious decisions of the petitioner and her attorney on record.
- G) That appropriate sanctions be applied as applicable to Rule 11 MRCP which states that *"if any party files a motion or pleading which, in the opinion of the court, is frivolous or is filed for the purpose of harassment or delay, the court may order such a party, or his attorney, or both, to pay to the opposing party or parties the reasonable expenses incurred by such other parties and by their attorneys, including reasonable attorneys' fees"* for the frivolous claims made in their latest filing

Movant prays for such other, further, and more general relief as in the premises may appear meet and proper.

Respectfully submitted this the ^{16th} day of ^{October} ~~May~~, 2020



Matthew Oliver Reardon

Respondent/Defendant

117 CR 401

Oxford, MS 38655

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Before me, the undersigned authority in and for the aforesaid county and state, personally appeared the within named MATTHEW OLIVER REARDON, who stated that he signed the above and foregoing instrument on the day and date therein mentioned, and that the facts and things contained therein are true and correct as therein stated.

MATTHEW OLIVER REARDON

SWORN TO AND SUBSCRIBED before me, this the 16th day of October 20 20.

My Commission Expires



Tina Johnson 10/16/20

CERTIFICATE OF SERVICE

I hereby certify that the above and foregoing notice has been issued to the opposing counsel of record, by email transmission and by placing a copy of the same in the United States mail, postage prepaid and properly addressed to:

MONA T. PITTMAN, ESQ.
P.O. BOX 2958
OXFORD, MS 38655

this 16th Day of October, 20 20.

Matthew Oliver Reardon
Matthew Oliver Reardon- Respondant